# Middlesex South Registry of Deeds

# Electronically Recorded Document

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## Recording Information

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| Document Number | : 49620 |
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| Recorded Date | : May 15, 2023 |
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**********
MASSACHUSETTS EXCISE TAX
Southern Middlesex District ROD # 001
Date: 05/15/2023 10:53 AM
Ctrl# 374661 11535 Doc# 00049620
Fee: $31,464.00 Cons: $6,900,000.00
**********

**Middlesex South Registry of Deeds**
**Maria C. Curtatone, Register**
**208 Cambridge Street**
**Cambridge, MA 02141**
**617-679-6300**
**www.middlesexsouthregistry.com**

34-40 Bear Hill Road and 332 Second Avenue, Waltham, Massachusetts 02451

# QUITCLAIM DEED

Elaine Pagliazzo and John Pagliazzo, Trustees of Philip Pagliazzo Sr. Realty Trust (the "Trustees") under a Declaration of Trust dated April 26, 2012, of which a Trustees' Certificate pursuant to MGL Chapter 184, Section 35, is recorded in the Middlesex South District Registry of Deeds in 59501, Page 303, and a Trustees' Certificate of even date is recorded herewith, having an address of 3 Apple Tree Lane, Natick, MA 01760, and, Elaine Pagliazzo and John Pagliazzo (the "Personal Representatives"), as the Personal Representatives of the Estate of Philip Pagliazzo, also known as Philip Pagliazzo, Sr. (Middlesex County Probate and Family Court, Docket No. MI18P1009EA), under Power of Sale contained in Article Section 7.1(e) of the Last Will and Testament of Philip Pagliazzo, Sr., having an address of 11 Nonesuch Drive, Natick, MA 01760, as grantor,

IN CONSIDERATION OF SIX MILLION, NINE HUNDRED THOUSAND ($6,900,000.00) DOLLARS,

hereby grant with QUITCLAIM COVENANTS

to MAG RE Holdings – Waltham, LLC, a Massachusetts limited liability company, with a principal address of 777 Washington Street, Newton, MA 02460, as grantee,

Those parcels of land, together with the buildings and improvements thereon, commonly known and numbered as 34-40 Bear Hill Road and 332 Second Avenue, both situated in Waltham, Middlesex County, Commonwealth of Massachusetts, and being more particularly bounded and described on Exhibit A attached hereto, subject to (i) all covenants, restrictions, easements and agreements of record, (ii) all real estate taxes not yet due and payable, and (iii) rights of parties in possession.

Meaning and intending to describe and convey, and hereby conveying, (i) that portion of the premises conveyed in Quitclaim Deed of Philip Pagliazzo to the Trustees, dated April 26, 2012, and recorded in the Middlesex South District Registry of Deeds in Book 59501, Page 306 (the "Philip 2012 Deed"), and described as "Parcel Three" and "Parcel Seven" in said deed, and (ii) the same premises described in the Release Deed of Elaine Pagliazzo, John Pagliazzo, Philip

Pagliazzo, Jr., and Linda Boyes to the Trustees, dated October 3, 2022 and recorded in the Middlesex South District Registry of Deeds in Book 80985, Page 256.

Also, meaning and intending to describe and convey, and hereby conveying, all of the Personal Representatives' right, title, and interest in and to the same premises described in the Deed of AT&T Corp. to Philip Pagliazzo (a/k/a Philip Pagliazzo, Sr.) and Rose M. Pagliazzo, as tenants in common, dated August 19, 1996, and recorded in the Middlesex South Registry of Deeds (the "Registry") in Book 26722, Page 486 (the "AT&T Deed"). The premises described in said AT&T Deed are a portion of the premises described as "Parcel Three" in the Philip 2012 Deed and are the same premises described on Exhibit A attached hereto as Parcel II of 34-40 Bear Hill Road, Waltham, MA. See also (i) Estate of Rose M. Pagliazzo, Middlesex Probate and Family Court Docket No. MI04P4542AD1 and Death Certificate of Rose M. Pagliazzo (Date of Death: July 15, 2004) recorded in the Registry in Book 74274, Page 38; (ii) Estate of Richard T. Pagliazzo, Middlesex Probate and Family Court Docket No. MI09P3814EA and Death Certificate of Richard T. Pagliazzo (Date of Death: August 9, 2009) recorded in the Registry in Book 78695, Page 568; and (iii) Estate of Philip Pagliazzo, Middlesex Probate and Family Court Docket No. MI18P1009EA and Death Certificate of Philip Pagliazzo (Date of Death: December 22, 2017) recorded in the Registry in Book 78618, Page 347.

[The remainder of this page is intentionally left blank.]

*[ Signature Page to Quitclaim Deed – Elaine Pagliazzo, Trustee and Not Individually ]*

EXECUTED as a sealed instrument this 8th day of May, 2023.

PHILIP PAGLIAZZO SR. REALTY TRUST

By: Elaine Pagliazzo
Elaine Pagliazzo, Trustee and Not Individually

COMMONWEALTH OF MASSACHUSETTS

County of Suffolk, ss.

On this 8th day of May, 2023, before me, the undersigned Notary Public, personally appeared Elaine Pagliazzo, Trustee of Philip Pagliazzo Sr. Realty Trust, and not individually, proved to me through satisfactory evidence of identification which was a Massachusetts Driver's License, to be the person whose name is signed on the preceding document, acknowledged to me that she signed it voluntarily for its stated purpose as Trustee of said trust and not individually.

Notary Public
My Commission Expires:

[AFFIX NOTARIAL SEAL]

DONNA M. COYLE
Notary Public
Commonwealth of Massachusetts
My Commission Expires June 5, 2026

6/5/2026

*[ Signature Page to Quitclaim Deed – Elaine Pagliazzo, Personal Representative and Not Individually ]*

EXECUTED as a sealed instrument this 8th day of May, 2023.

ESTATE OF PHILIP PAGLIAZZO

By: Elaine Pagliazzo
Elaine Pagliazzo, Personal Representative and Not Individually

COMMONWEALTH OF MASSACHUSETTS

County of Suffolk, ss.

On this 8th day of May, 2023, before me, the undersigned Notary Public, personally appeared Elaine Pagliazzo, Personal Representative of the Estate of Philip Pagliazzo, and not individually, proved to me through satisfactory evidence of identification which was a Massachusetts Driver's License, to be the person whose name is signed on the preceding document, acknowledged to me that she signed it voluntarily for its stated purpose as Personal Representative of said estate and not individually.

Notary Public
My Commission Expires: 6/5/2026

[AFFIX NOTARIAL SEAL]

DONNA M. COYLE
Notary Public
Commonwealth of Massachusetts
My Commission Expires June 5, 2026

*[ Signature Page to Quitclaim Deed –John Pagliazzo, Trustee and Not Individually ]*

EXECUTED as a sealed instrument this 4 day of May, 2023.

PHILIP PAGLIAZZO SR. REALTY TRUST

By: John Pagliazzo
John Pagliazzo, Trustee and Not Individually

COMMONWEALTH OF MASSACHUSETTS

County of Middlesex, ss.

On this 4 day of May, 2023, before me, the undersigned Notary Public, personally appeared John Pagliazzo, Trustee of Philip Pagliazzo Sr. Realty Trust, and not individually, proved to me through satisfactory evidence of identification which was Drivers License, to be the person whose name is signed on the preceding document, acknowledged to me that he signed it voluntarily for its stated purpose as Trustee of said trust and not individually.

JOANNE W. HILGER
Notary Public
Massachusetts
My Commission Expires
Dec 21, 2029

[AFFIX NOTARIAL SEAL]

Notary Public
My Commission Expires: 12/21/29

*[ Signature Page to Quitclaim Deed –John Pagliazzo, Personal Representative and Not Individually ]*

EXECUTED as a sealed instrument this 4 day of May, 2023.

ESTATE OF PHILIP PAGLIAZZO

By: John Pagliazzo
John Pagliazzo, Personal Representative and Not Individually

COMMONWEALTH OF MASSACHUSETTS

County of Middlesex, ss.

On this 4 day of May, 2023, before me, the undersigned Notary Public, personally appeared John Pagliazzo, Personal Representative of the Estate of Philip Pagliazzo, and not individually, proved to me through satisfactory evidence of identification which was Drivers License, to be the person whose name is signed on the preceding document, acknowledged to me that he signed it voluntarily for its stated purpose as Personal Representative of said estate and not individually.

JOANNE W. HILGER
Notary Public
Massachusetts
My Commission Expires
Dec 21, 2029
[AFFIX NOTARIAL SEAL]

Notary Public
My Commission Expires: 12/21/29

## EXHIBIT A

### 34-40 Bear Hill Road, Waltham, MA

**Parcel I**

The land known and numbered 40 Bear Hill Road, Waltham, Massachusetts, being bounded and described as follows:

The land with the buildings thereon, now known and numbered 40 Bear Hill Road, in said Waltham, and bounded and described as follows:

Beginning at the Southeasterly corner of said premises on Bear Hill Road, by land now or late of the City of Waltham at a stone post;

Thence running Westerly on land now or late of said City of Waltham as far as the said land or said City extends to a stone post;

Thence turning and running Northerly on land now or late of Rufus Warren to a fence at land now or late of Stephen W. Adams;

Thence turning and running Easterly on said land now or late of Stephen W. Adams to Bear Hill Road;

Thence turning and running Southerly on said Bear Hill Road to the said land now or late of the City of Waltham, and being the point of beginning.

For title, see deed from Philip Pagliazzo, dated April 26, 2012 and recorded with Middlesex South District Registry of Deeds in Book 59501, Page 306.

**Parcel II**

A certain parcel of land in Waltham, Middlesex County, Massachusetts, being shown as Parcel D on plan entitled "Plan of Land in Waltham, Mass., Scale 1" = 40' Owner: American Telephone & Telegraph Company", prepared by Hayes Engineering, Inc., Civil Engineers, dated May 1, 1996, recorded in Middlesex South District Registry of Deeds as Plan 1031 of 1996, and being more particularly described as follows:

| | |
|---|---|
| SOUTHEASTERLY: | By Bear Hill Road, one hundred eight-four and 11/100 (184.11) feet; |
| NORTHWESTERLY: | By other land of the grantees, as shown on said plan, on two courses, ninety and 26/100 feet (90.26) and seventy-seven and 90/100 (77.90) feet; and |
| NORTHERLY: | By land of the Prospect Hill Realty Trust, as shown on said Plan, sixteen and 81/100 (16.81) feet. |

Containing 2,027 square feet, according to said plan, and being the same premises conveyed to Philip Pagliazzo and Rose M. Pagliazzo by deed dated August 19, 1996 and recorded with Middlesex South District Registry of Deeds in Book 26772, Page 486. See also Release Deed by Elaine Pagliazzo, John Pagliazzo, Philip Pagliazzo, Jr., and Linda Boyes, dated on or about October 3, 2022 and recorded with Middlesex South District Registry of Deeds in Book 80985, Page 257.

The street address of said premises is 34-40 Bear Hill Road, Waltham, Massachusetts 02154.

**332 Second Avenue, Waltham, MA**

The land in Waltham, Middlesex County, Massachusetts, being Lot 55A shown on a plan entitled "Plan of Land in Waltham, Mass., Owned by Bear Hill Ind. Devt. Trust", dated August 1, 1963, by McCarthy Engineering Service, Inc., recorded in the Middlesex South Registry of Deeds in Book 10630, Page 446 as Plan No. 1082 of 1964

For title, see deed from Philip Pagliazzo, dated April 26, 2012 and recorded with Middlesex South District Registry of Deeds in Book 59501, Page 306.